

come there to drink and do not give money at their will, are sorely punished at their pleas for dead wood, although the King has no demesne; nor does anyone dare to brew when the foresters brew, nor to sell ale so long as the foresters have any kind of ale to sell; and this every forester does year by year to the great grievance of the country."¹ Each one of these abuses had been forbidden by chapter 7 of the *Carta de foresta*, which had prohibited the making of "scotale" and the collection of corn, lambs, and pigs. Such rules were easier to enunciate than enforce.

VII. *Later History of Forests and Forest Laws.* The Forest Charter signally failed to secure a pure administration of the law; but two ameliorating processes were at work. The long struggle to define the boundaries ended, in the reign of Edward II., in the defeat of the King, who consented to the frontier being drawn to suit the barons.² Within these restricted limits, time and the progress of civilization softened the severity of the forest code, many customs becoming obsolete.³ Charles I. made an ill-judged attempt to revive some of the Crown's long-forgotten rights. Justice-seats were held by the Earl of Holland, accompanied by amercements and attempts to extend the forest bounds.⁴ The result was a drastic act of the Long Parliament, limiting them to their old extents.⁵ This statute, however, abolished neither the forests, the forest laws, nor the forest courts. After the Restoration a Justice-seat actually took place *pro forma* before the Earl of Oxford. Blackstone declares this to be the last ever held,⁶ although the offices of justice and warden of the forests were not abolished till 1817.⁷ The forests, much curtailed in extent, are still Crown property, now administered in the interests of the public by

¹ *Select Pleas*, 126.

² See *infra*, under c. 47.

³ "*Assisa et consuetudines forestae*," issued by Edward I. in 1278, although declaratory, may have done something towards curtailing discretionary authority. *Statutes of Realm*, I. 243; Bémont, *Chartes*, lxx.

⁴ See S. R. Gardiner, *Hist. Engl.*, VII. 363, and VIII. 282.

⁵ 16 Charles I. c. 16.

⁶ *Commentaries*, III. 72.

⁷ By 57 George III. c. 61.

Commissioners of Woods and Forests.¹ The operation of the common law is, of course, no longer excluded from their confines, the old antithesis between forest law and the law of England being a thing of the past.²

CHAPTER FORTY-FIVE.

Nos non faciemus justiciarios, constabularios, vicecomites vel ballivos, nisi de talibus qui sciant legem regni et eam bene velint observare.

We will appoint as justices, constables, sheriffs, or bailiffs only such as know the law of the realm and mean to observe it well.

The object of this plainly worded clause was to prevent the appointment of unsuitable men to responsible posts under the Crown. The list of officers is a comprehensive one—justices, sheriffs, constables and bailiffs—embracing all royal ministers and agents, both of the central and of the local government, from the chief justiciar down to the humblest serjeant.³ This clause was directed in particular against John's foreign favourites such as the Poitevin Bishop of Winchester, Peter des Roches, who had wielded the authority of chief justiciar in 1214 when the King was abroad,⁴ or such as Engelard de Cigogné, stigmatized by name in a later part of Magna Carta.⁵ Such men had no interests at stake in England, and little love for its customs and free traditions. In future John must choose a different type of servants, avoiding all such unscrupulous men, whether Englishmen or foreigners, as were ready to break the law in their master's interests or their own. But what class were to fill their places?

Bishop Stubbs credits the framers of the Charter

¹ In virtue of a series of Acts of which 14-15 Victoria c. 42 is the latest.

² See Stephen, *Commentaries*, II. 465-6.

³ Constable and bailiff are discussed *supra*, c. 24, and shown to include forest magistrates, *supra*, c. 44.

⁴ See *supra*, p. 30, and cf. Blackstone, *Great Charter*, viii.

⁵ See c. 50.

with an intention to secure the appointment of men well versed in legal science: "on this principle the steward of a court-leet must be a learned steward."¹ The clause of Magna Carta, however, refers to royal nominees, not to the officers appointed by mesne lords to preside over their feudal courts. The barons appointed their own stewards and bailiffs, and had no wish to hamper their own freedom of choice; but only that of the King. Further, the barons did not desire that John should employ men steeped in legal lore, but plain Englishmen with a rough-and-ready knowledge of insular usage, who would avoid arbitrary acts condemned by the law. The barons at Runnymede desired precisely what the council of St. Albans had desired on 4th August, 1213, when it issued formal writs to sheriffs and foresters to observe the laws of Henry I. and abstain from unjust exactions;² and these laws of Henry were but the laws of Edward Confessor (or, in reality, of Canute) slightly amended.

The attitude of John's barons was the same as that of Henry's barons, when the latter declared, in 1234, in emphatic terms, that they did not wish the laws of England to be changed.³ They were far from desiring to be governed by ministers deeply versed in the science and literature of jurisprudence, since these would necessarily have been churchmen and civilians.

This well-meaning provision of Magna Carta disappeared in 1216 (without any comment in the so-called "respite clause"). Even if it had remained intact, it would not have effected much, in the absence of adequate machinery to ensure its enforcement. In promising the appointment of such ministers as knew the law and meant to keep it, John remained sole judge of the men appointed and their intentions. The clause indicated no standard of fitness, no neutral arbitrator to decide between fit and unfit,⁴ and no

¹ *Const. Hist.*, I. 578 n.

² Cf. *supra*, p. 28.

³ "*Nolunt leges Anglie mutare que usitate sunt et approbate.*" See Statute of Merton, c. 9.

⁴ It would have been a notable anticipation of modern constitutional theory if the barons in 1215 had referred such questions to the decision of the *Commune Concilium* summoned as in c. 14 (q.v.).

sanction to enforce compliance on an unwilling King. Half a century later, the Provisions of Oxford gave proof of some advance in political theory. They contained an expedient, crude enough it is true, for constraining royal officials to keep the law: forms of an oath of office to be taken by castellans and ministers of all grades were carefully provided.¹ Even this was only a first step towards settling a problem not completely solved until the modern doctrine of ministerial responsibility was firmly established.²

CHAPTER FORTY-SIX.

OMNES barones qui fundaverunt abbatias, unde habent cartas regum Anglie, vel antiquam tenuram, habeant earum custodiam cum vacaverint, sicut habere debent.

All barons who have founded abbeys, concerning which they hold charters from the kings of England, or of which they have long-continued possession, shall have the wardship of them, when vacant, as they ought to have.

Religious houses of various orders (abbeys, priories, and convents), which had increased rapidly in number since the reign of Henry I., fell naturally into two classes, according as they had been founded by the King or by private individuals. The King or the great baron, in bestowing lands on a religious foundation, reserved, either expressly or by implication, valuable rights of property: of these the control over the election of the abbot or prior, together with the wardship of the fief during vacancies, were the most important. King John, while by his charter to the clergy he renounced control over election of bishops, reserved his rights of wardship; and the barons insisted that the proprietary rights of mesne lords who had founded religious houses, should also be respected. John, however,

¹ See *Select Charters*, 388-391, and Madox, II. 149, with authorities there cited.

² Prof. Adams seems to make too much of this chapter (*Origin*, 259-260). It is only a vague promise to employ honest officials: it confers no constitutional veto upon anyone. Had the function of defining fit ministers been conferred on the Common Council, it would have been a notable innovation.

wherever he had any plausible pretext, usurped the wardship over private foundations. It would appear, from the terms of a later chapter,¹ that in 1215 the Crown actually held in ward certain abbeys founded by mesne lords. The present chapter looks to the future, forbidding new usurpations of this nature.

In reissues of the Charter verbal changes occur, but it is not clear that they imply changes of substance. In 1216 the words "and as it has been above declared" were added, implying that the rights of mesne lords were to be restricted by the rules previously laid down in chapter 5, as to wardship—rules particularly applied to the lands of bishoprics and religious houses in 1216 by a clause which had no parallel in John's Charter.² In 1217 three other small changes tend to define and perhaps to widen the scope of the clause. The "barons who have founded abbeys" become "the patrons of abbeys"; royal "charters" become more explicitly "charters of advowson"; "ancient tenure" is expanded into "ancient tenure or possession."³ These alterations seem to indicate an effort towards greater verbal accuracy, and do not involve any change of principle. It should, perhaps, be noted, however, that the words "*patroni*" and "*de advocacione*," occurring in 1217, contain a tacit assertion of lay patronage of which there was no hint in 1215; but it would not be safe to conclude from this alone that there had been any change of attitude on the question of canonical election.

The object of this chapter was to define the relations between the King and the barons as to wardship, not those between the lay and ecclesiastical authorities as to rights of appointment. It seems to have made little difference, if any, in practice: Henry III. never observed in its fullness the doctrine here enunciated, but claimed wardship over abbeys and priories founded by earls and barons on their own fiefs.⁴ On the closely allied question of lay patronage.

¹ See *infra*, c. 53.

² Cf. *supra*, p. 212.

³ See Appendix for final form in charter of 1225.

⁴ See Petition of Barons, c. 11 (*Sel. Chart.*, 384); Maitland, *Sel. Pleas Man. Courts*, lxxvii. For the practice in Normandy, see authorities cited by Adams, *Origin*, 246 n.